

Opinion of the Court

Justice plurality took a very different view of the Sixth Amendment. These Justices declared that the real question before them was whether unanimity serves an important “function” in “contemporary society.”²⁸ Then, having re-framed the question, the plurality wasted few words before concluding that unanimity’s costs outweigh its benefits in the modern era, so the Sixth Amendment should not stand in the way of Louisiana or Oregon.

The ninth Member of the Court adopted a position that was neither here nor there. On the one hand, Justice Powell agreed that, as a matter of “history and precedent, . . . the Sixth Amendment requires a unanimous jury verdict to convict.”²⁹ But, on the other hand, he argued that the Fourteenth Amendment does not render this guarantee against the federal government fully applicable against the States. In this way, Justice Powell doubled down on his belief in “dual-track” incorporation—the idea that a single right can mean two different things depending on whether it is being invoked against the federal or a state government.

Justice Powell acknowledged that his argument for dual-track incorporation came “late in the day.”³⁰ Late it was. The Court had already, nearly a decade earlier, “rejected the notion that the Fourteenth Amendment applies to the States only a ‘watered-down, subjective version of the individual guarantees of the Bill of Rights.’”³¹ It’s a point we’ve restated many times since, too, including as recently as last year.³² Still, Justice Powell frankly explained, he was “unwillin[g]” to follow the Court’s precedents.³³ So he

²⁸ *Apodaca*, 406 U. S., at 410.

²⁹ *Johnson*, 406 U. S., at 371 (concurring opinion).

³⁰ *Id.*, at 375.

³¹ *Id.*, at 384 (Douglas, J., dissenting) (quoting *Malloy*, 378 U. S., at 10–11); *Johnson*, 406 U. S., at 395–396 (Brennan, J., dissenting) (collecting cases).

³² See, e. g., *Timbs v. Indiana*, 586 U. S. 146, 150 (2019) (unanimously rejecting arguments for dual-track incorporation).

³³ *Johnson*, 406 U. S., at 375–376, and n. 15 (concurring opinion).